

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Wall	Team: Squad #13	CCRB Case #: 202400049	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Friday, 12/29/2023 8:25 AM	Location of Incident: LA Fitness at 1776 Eastchester Road	18 Mo. SOL 6/29/2025	Precinct: 49		
Date/Time CV Reported Tue, 01/02/2024 4:07 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 01/02/2024 4:07 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Elizabeth Encarnacion	04739	955509	049 PCT
2. PO Kevin Coogan	18952	969604	049 PCT
3. PO Jonathan Reilly	21245	971632	049 PCT
4. PO Emily Cruz	24057	971883	049 PCT
5. SGT Karina Bonilla	01252	953690	H&W EAU
6. An Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Oliviero	31373	973640	049 PCT
2. PO Valtrim Nikqi	24395	973629	049 PCT
3. PO Ashley Rodriguez	17846	975132	049 PCT
4. PO Stacey Pena	21682	965404	049 PCT
5. PO Luis Gomez	03334	972665	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Elizabeth Encarnacion	Force: Police Officer Elizabeth Encarnacion used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Kevin Coogan	Force: Police Officer Kevin Coogan used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Jonathan Reilly	Abuse: Police Officer Jonathan Reilly threatened § 87(2)(b) with the use of force.	C . Miscellaneous - Subject Resigned
D . PO Jonathan Reilly	Discourtesy: Police Officer Jonathan Reilly spoke discourteously to § 87(2)(b)	D . Miscellaneous - Subject Resigned
E . An Officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	E . Within NYPD Guidelines
F . PO Kevin Coogan	Discourtesy: Police Officer Kevin Coogan spoke discourteously to § 87(2)(b)	F . Substantiated
G . PO Kevin Coogan	Off. Language: Police Officer Kevin Coogan made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	G . Substantiated
H . PO Kevin Coogan	Force: Police Officer Kevin Coogan restricted § 87(2)(b) breathing.	H . Unfounded
I . PO Kevin Coogan	Force: Police Officer Kevin Coogan used a chokehold against § 87(2)(b)	I . Unfounded
J . PO Emily Cruz	Abuse: Police Officer Emily Cruz improperly used their body-worn camera.	J . Miscellaneous - Subject Resigned

Officer(s)	Allegation	Investigator Recommendation
K . PO Emily Cruz	Off. Language: Police Officer Emily Cruz made remarks to § 87(2)(b) based upon religion.	K . Miscellaneous - Subject Resigned
L . PO Emily Cruz	Discourtesy: Police Officer Emily Cruz spoke discourteously to § 87(2)(b)	L . Miscellaneous - Subject Resigned
M . SGT Karina Bonilla	Abuse: Sergeant Karina Bonilla forcibly removed § 87(2)(b) to the hospital.	M . Within NYPD Guidelines

Case Summary

On January 2, 2024, § 87(2)(b) filed this complaint in person at the CCRB [01 Board Review].

On December 29, 2023, § 87(2)(b) was throwing weights at the LA Fitness gym located at 1776 Eastchester Road in the Bronx when, at 8:25 AM, Police Officers Kevin Coogan, Jonathan Reilly, Elizabeth Encarnacion, and Emily Cruz, all of the 49th Precinct, approached her. PO Encarnacion and PO Coogan grabbed § 87(2)(b) allegedly threw her to the floor, and physically restrained her (**Allegations A and B: Force – Physical Force; within NYPD guidelines**). PO Reilly threatened to deploy his Taser against § 87(2)(b) and told her to “fucking relax,” and an officer said, “We’re not doing this shit” (**Allegations C and D: Abuse of Authority – Threat of Force, Discourtesy – Word; miscellaneous – subject resigned; Allegation E – Discourtesy: Word; within NYPD guidelines**). PO Coogan said, “That fucking bitch punched me in the face” (**Allegations F and G: Discourtesy – Word, Offensive Language – Gender; substantiated**). While attempting to place § 87(2)(b) onto a stretcher, PO Coogan allegedly placed his forearm across § 87(2)(b) neck, restricting her breathing (**Allegations H and I: Force – Chokehold, Restricted Breathing; unfounded**). After § 87(2)(b) was placed in the ambulance, she began to pray in Latin, and PO Cruz, who had already deactivated her body-worn camera (BWC), allegedly said, “She’s speaking in tongues, she’s possessed. This is the work of the devil” (**Allegations J, K, and L: Abuse of Authority – Improper Use of BWC, Offensive Language: Religion, Discourtesy – Word; miscellaneous – subject resigned**). Sergeant Karina Bonilla of the 49th Precinct then supervised the removal of § 87(2)(b) to the hospital against her will (**Allegation M: Abuse of Authority – Forcible Removal to Hospital; within NYPD guidelines**).

No arrest or summons resulted from this incident. The investigation received 23 security videos from LA Fitness [02 Board Review] and 11 BWC videos [03 Board Review] related to this incident.

Findings and Recommendations

Allegation (A) Force: Police Officer Elizabeth Encarnacion used physical force against

§ 87(2)(b)

Allegation (B) Force: Police Officer Kevin Coogan used physical force against § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Jonathan Reilly threatened § 87(2)(b) **with the use of force.**

Allegation (D) Discourtesy: Police Officer Jonathan Reilly spoke discourteously toward

§ 87(2)(b)

Allegation (M) Abuse of Authority: Sergeant Karina Bonilla forcibly removed § 87(2)(b) **to the hospital.**

It is undisputed that § 87(2)(b) was throwing weights around the gym, and that she was ultimately removed to the hospital against her will.

§ 87(2)(b) stated [04 Board Review] that something upsetting had happened to her that day, and she went to LA Fitness to work out, as exercise helps keep her happy. As § 87(2)(b) walked around the LA Fitness, she did throw some weights around, as they were in her way and too heavy to move easily. While § 87(2)(b) was using an exercise machine, another gym patron, a bald white male, told her she was crazy for the way she was using the machine, and he punched her in the chest. No staff member intervened in this interaction or told § 87(2)(b) or the bald white male to leave the

gym. Ten minutes later, six uniformed police officers approached § 87(2)(b). PO Coogan told § 87(2)(b) that she needed to leave the gym, but she refused. The officers asked her again to leave, and § 87(2)(b) again refused. The officers then grabbed § 87(2)(b) by her arms and her ankles, causing her to tense up and flail and twist her body in an attempt to break their hold. § 87(2)(b) did not kick or strike any of the officers. PO Encarnacion and PO Coogan pushed § 87(2)(b) by her shoulders, causing her to fall to the floor and hit her head on the floor. The officers then went to the floor and continued attempting to restrain § 87(2)(b) who continued to twist her body and scream. PO Reilly then asked § 87(2)(b) “Do you want to get tased?” PO Encarnacion told PO Reilly that he could not say that to § 87(2)(b). PO Reilly did not mention a Taser again after this. Ultimately, § 87(2)(b) was placed in handcuffs and removed to § 87(2)(b) Hospital. § 87(2)(b) stated that she suffered cuts and bruises to her wrists, knees, ankles, and shoulder, swelling resulting in the loss of a toenail, and a concussion as a result of this incident.

According to Event § 87(2)(b) [29 Board Review], a male caller reported that a female was throwing weights at people, acting violently, yelling in people’s faces, and was possibly under the influence.

A sub-clip of LA Fitness security video 1191_1 [27 Board Review], at runtime 00:00, shows § 87(2)(b) in the upper right corner of the frame lifting a barbell and dropping it onto the floor multiple times. At runtime 01:20, the officers approach § 87(2)(b) followed shortly by multiple gym patrons being drawn to their location. It is unclear from this angle what caused the gym patrons to move toward the officers and § 87(2)(b).

PO Coogan’s BWC video [06 Board Review] shows PO Coogan and PO Encarnacion following an LA Fitness employee into the gym. At runtime 01:36, § 87(2)(b) walks swiftly into the back area of the gym, and PO Coogan says, “That’s her, I’m guessing.” The LA Fitness employee responds, but her answer is unintelligible. At runtime 01:45, § 87(2)(b) walks out from the back area and onto the main gym floor. The LA Fitness employee stops walking and looks at the officers. At runtime 01:47, PO Encarnacion calls out, “Ma’am,” to § 87(2)(b) to get her attention, but § 87(2)(b) continues to walk past her in a frantic manner. In PO Cruz’s BWC video [07 Board Review], at runtime 01:38, as PO Coogan and PO Encarnacion grab § 87(2)(b) turns around and punches PO Coogan in the face. PO Cruz then joins the officers in attempting to restrain § 87(2)(b). During the struggle, in which § 87(2)(b) is flailing, kicking, and screaming, the officers and § 87(2)(b) fall to the floor. PO Encarnacion falls backwards while holding § 87(2)(b) who falls on top of PO Encarnacion, while PO Coogan falls on top of § 87(2)(b). The exact means by which § 87(2)(b) and the officers fall to the floor is unclear. While on the floor, PO Encarnacion, PO Coogan, and PO Cruz attempt to place § 87(2)(b) in handcuffs. PO Encarnacion holds § 87(2)(b) head and shoulders down, PO Cruz holds § 87(2)(b) legs down, and PO Coogan attempts to pull § 87(2)(b) arm out from under her side. At runtime 01:49, PO Coogan tells the officers, “Got it, got it.” At 01:56, PO Reilly steps over § 87(2)(b) and kneels in front of her with his Taser brandished. § 87(2)(b) is on the floor with three officers on top of her. She makes general comments but is no longer shouting, screaming, or kicking. PO Reilly asks § 87(2)(b) “Do you want to get tased?” § 87(2)(b) responds calmly, “No, I don’t like shocks.” PO Reilly continues, “Do you wanna get tased then? Fucking relax. Flip over right now or you’re gonna get tased.” PO Reilly places his Taser against § 87(2)(b) back. PO Coogan pushes PO Reilly’s Taser away and tells him, “Stop. Reilly, calm the fuck down.” PO Reilly holsters his Taser and assists the officers in placing § 87(2)(b) in handcuffs. At runtime 02:44, PO Reilly and PO Coogan attempt to lift § 87(2)(b) off the floor, and § 87(2)(b) drops back down to the floor and writhes her body. A male voice (unclear whose) says, “We’re not doing this shit.” The officers then lift § 87(2)(b) and begin walking her out of the gym.

PO Coogan’s statement [08 Board Review] is generally consistent with the BWC footage. PO

Coogan stated that he responded to the LA Fitness following a call from the gym regarding a violent emotionally disturbed person (EDP) at the location. After § 87(2)(b) punched him in the face, the officers attempted to restrain § 87(2)(b). In doing so, the officers tripped over some weights that were scattered on the floor. This caused PO Encarnacion to reach out and attempt to brace herself. In doing so, PO Encarnacion grabbed § 87(2)(b) by the hair and pulled her back as she fell. PO Coogan saw this as a natural reaction to falling and not an intentional grabbing and pulling of § 87(2)(b) hair. PO Encarnacion fell first, § 87(2)(b) fell on top of PO Encarnacion, and PO Coogan fell on top of § 87(2)(b). Neither PO Coogan nor PO Encarnacion purposefully threw § 87(2)(b) to the floor. Ultimately, PO Encarnacion restrained § 87(2)(b) by her shoulder area, PO Coogan restrained § 87(2)(b) by her ribcage area, and PO Cruz moved in to restrain § 87(2)(b) legs. § 87(2)(b) had fallen onto her side, pinning one of her arms against the floor. PO Coogan was focused on turning § 87(2)(b) over in order to grab both of her arms and place her in handcuffs. § 87(2)(b) tensed her body and prevented the officers from turning her over and controlling her hands. PO Coogan believed he had the situation under control, as he had control of one of § 87(2)(b) arms and was in the process of controlling § 87(2)(b) second arm. § 87(2)(b) was no longer violently resisting the officers at this point. When PO Reilly placed his Taser against § 87(2)(b) back, PO Coogan pushed the Taser away and told PO Reilly to “calm the fuck down,” because he felt that the situation was under control and did not require a Taser to gain control of § 87(2)(b). PO Coogan could not recall if he said to § 87(2)(b) “We don’t have time for this shit,” or “We’re not doing this shit.”

PO Encarnacion’s statement [19 Board Review] is generally consistent with the BWC and security footage, as well as PO Coogan’s statement. PO Encarnacion first tried to get § 87(2)(b) attention by speaking to her, but § 87(2)(b) ignored PO Encarnacion. PO Coogan then approached § 87(2)(b) and § 87(2)(b) punched him in the face. While attempting to restrain § 87(2)(b), PO Encarnacion tripped on a weight and fell to the floor while holding § 87(2)(b). PO Encarnacion did not recall grabbing § 87(2)(b) hair as she fell. PO Encarnacion could not see the actions taken by the other officers from her vantage point.

PO Reilly’s statement [09 Board Review] is generally consistent with the BWC and security footage, as well as with PO Coogan’s statement. After being taken to the floor, § 87(2)(b) continued to resist the officers by screaming, tensing her body, and flailing her legs. PO Reilly saw that the officers were able to place one handcuff on § 87(2)(b) but were struggling to get the second cuff on. PO Reilly then brandished his Taser and uncovered the prongs. He moved to kneel in front of § 87(2)(b), showed her the Taser, and told her to calm down and place her hands behind her back or she will be tased. PO Reilly did so to gain voluntary compliance from § 87(2)(b). After saying this to § 87(2)(b), PO Reilly placed his Taser against § 87(2)(b) back. PO Coogan pushed PO Reilly’s Taser away and told him the officers had the situation under control. PO Reilly then holstered his Taser and assisted in placing § 87(2)(b) in handcuffs.

According to Patrol Guide Procedure 221-01: Force Guidelines [11 Board Review], force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject’s voluntary compliance, must be prioritized. Officers shall “apply no more than the reasonable force necessary to gain control.” Officers must consider the following factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in

comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

BWC video shows that upon being grabbed by PO Coogan and PO Cruz, § 87(2)(b) immediately punched PO Coogan in the face. While PO Encarnacion tried to get § 87(2)(b) attention, none of the officers had an opportunity to ask § 87(2)(b) to leave the gym peacefully before she struck PO Coogan. § 87(2)(g)

§ 87(2)(b) The BWC video shows that no officer pushed § 87(2)(b) to the floor by her shoulders as she described. BWC video shows that after the officers attempted to restrain § 87(2)(b) she continued to resist by flailing around, and then PO Coogan and PO Encarnacion fell to the floor with § 87(2)(b) though the exact means by which they fell is unclear. § 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **within NYPD guidelines**.

According to Patrol Guide Procedure 221-08: Use of Conducted Electrical Weapons (CEW) [12 **Board Review**], a CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It is prohibited to use a CEW in situations that do not require the use of physical force. Active resistance is defined as using physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Officers may use a laser warning (pointing and placing the laser dot of an activated Taser on a subject) or a warning arc (displaying a visible and audible arcing of electricity between a Taser's front electrodes) in conjunction with a verbal warning in order to attempt to gain voluntary compliance from the intended subject.

Per *DCT Disciplinary Case No. 2015-15012* [15 **Board Review**], officers may speak discourteously "in the context of a dynamic situation over which [they are] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian.

§ 87(2)(b) acknowledged that after falling to the floor, she continued to resist the officers' attempts to restrain her. The BWC footage shows that § 87(2)(b) continued to tense her body after falling to the floor, refusing to give up her hands. § 87(2)(g)

§ 87(2)(b), it is recommended that **Allegations C and D** be closed as **miscellaneous – subject resigned**, while **Allegation E** be closed as **within NYPD guidelines**.

According to Patrol Guide Procedure 221-13: Mentally Ill or Emotionally Disturbed Persons [21

Board Review], when a police officer encounters someone who appears to be mentally or and temporarily deranged and is conducting themselves in a manner which the officer reasonably believes is likely to result in serious injury to themselves or others, the officer must take the individual into protective custody and have the individual removed to a hospital in an ambulance.

It is undisputed that § 87(2)(b) was throwing weights around LA Fitness prior to the officers arriving on scene. When PO Coogan approached § 87(2)(b) she punched him in the face. § 87(2)(g)

Therefore, it is recommended that **Allegation M** be closed as **within NYPD guidelines**.

Allegation (F) Discourtesy: Police Officer Kevin Coogan spoke discourteously to § 87(2)(b)

Allegation (G) Offensive Language: Police Officer Kevin Coogan made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

In PO Coogan's second BWC video [13 Board Review], at runtime 04:15, PO Coogan tells PO Encarnacion and Police Officer Ashley Rodriguez of the 49th Precinct, "That fucking bitch punched me in the face." When PO Coogan makes this statement, § 87(2)(b) is being restrained by multiple officers approximately five feet away from where PO Coogan is standing.

PO Coogan stated [08 Board Review] that he made this statement because he was angry that § 87(2)(b) had punched him.

The Mission, Vision, and Values of the NYPD [14 Board Review] states that members of service are to respect the dignity of each individual while rendering police services with courtesy and with civility. Members of service must maintain a higher standard of integrity than is expected of others.

Per DCT Disciplinary Case No. 2015-15012 [15 Board Review], officers may speak discourteously "in the context of a dynamic situation over which [they are] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian.

Administrative Guide Procedure 304-06: Prohibited Conduct [25 Board Review] prohibits officers from "engaging in conduct prejudicial to good order, efficiency, or discipline of the Department," and from "using discourteous or disrespectful remarks regarding another person's age, gender, gender identity/expression, sexual orientation, or disability."

By his own admission, PO Coogan called § 87(2)(b) a "fucking bitch," because he was angry that she had punched him. PO Coogan made this statement while standing by as other officers attempted to restrain § 87(2)(b) § 87(2)(g)

Therefore, it is recommended that **Allegations F and G** be closed as **substantiated**.

Allegation (H) Force: Police Officer Kevin Coogan used a chokehold against § 87(2)(b)

§ 87(2)(b) breathing.

Allegation (I) Force: Police Officer Kevin Coogan restricted § 87(2)(b) breathing.

Allegation (J) Abuse of Authority: Police Officer Emily Cruz improperly used her body-worn camera.

Allegation (K) Offensive Language: Police Officer Emily Cruz made remarks to § 87(2)(b) based upon religion.

Allegation (L) Discourtesy: Police Officer Emily Cruz spoke discourteously to § 87(2)(b).

§ 87(2)(b) stated [04 Board Review] that after she was placed in handcuffs and leg shackles, she was carried to a stretcher. § 87(2)(b) continued to resist the officers' attempts to restrain her while being placed onto the stretcher. PO Coogan and another officer attempted to hold her down so she could be strapped in. PO Coogan placed his forearm across the center of § 87(2)(b) neck, making it difficult for her to breathe or scream. § 87(2)(b) told PO Coogan she could not breathe, to which he responded, "You're talking, so you can breathe." Ultimately, § 87(2)(b) was strapped onto the stretcher and placed into the ambulance. While in the ambulance, § 87(2)(b) began to pray in Latin. PO Cruz, who was in the ambulance with § 87(2)(b) said, "She's speaking in tongues, she's possessed. This is the work of the devil." § 87(2)(b) described this officer as a white Hispanic female with dark hair tied in a bun. § 87(2)(b) was then removed to the hospital against her will.

A second sub-clip of LA Fitness security video 1191_1 [28 Board Review], at runtime 00:00, shows the officers attempting to remove § 87(2)(b) from the gym. § 87(2)(b) throws her weight around as PO Coogan and PO Reilly attempt to escort her out. At runtime 00:27, § 87(2)(b) slips out of her handcuffs. PO Coogan and PO Rielly allow § 87(2)(b) to fall to the floor. § 87(2)(b) then kicks at PO Coogan and begins to flail her body. The officers grab hold of § 87(2)(b) before turning her onto her stomach and holding her face-down against the floor. At runtime 00:43, multiple additional officers arrive and run to assist in restraining § 87(2)(b). At runtime 05:08, the officers lift § 87(2)(b) off the floor and carry her out of the gym.

The BWC footage is not consistent with § 87(2)(b) statement. In PO Cruz's BWC video [07 Board Review], at runtime 03:23, § 87(2)(b) slips out of her handcuffs. At runtime 03:31, § 87(2)(b) drops to the floor, and the officers realize that she is no longer restrained. In PO Reilly's BWC video [16 Board Review], at runtime 03:55, § 87(2)(b) says that she cannot breathe while the officers attempt to restrain her a second time. None of the officers are placing pressure on her neck or back at this moment. In PO Pena's BWC video [17 Board Review], at runtime 04:11, § 87(2)(b) again complains of not being able to breathe. § 87(2)(b) is on her side, with no officers making physical contact with her neck or back. Shortly after § 87(2)(b) states that she cannot breathe, PO Coogan says, "If you can talk, you can breathe." In PO Coogan's second BWC video [13 Board Review], at runtime 07:00, PO Coogan and several other officers carry § 87(2)(b) to an ambulance stretcher and place her on it. § 87(2)(b) continues to flail her body and kick her legs as they place her onto the stretcher, resulting in the officers restraining her by pressing her down against the stretcher as they strap her into the stretcher. PO Coogan holds § 87(2)(b) legs down until she is fully secured to the stretcher. At no point does PO Coogan or any other officer place a forearm across § 87(2)(b) neck or back during this portion of the incident. PO Cruz's BWC video ends at runtime 10:01, moments after § 87(2)(b) is strapped to the stretcher, but before she is placed into the ambulance. In PO Encarnacion's BWC video [18 Board Review], at runtime 10:20, PO Encarnacion and Police Officer Stacey Peña of the 49th Precinct move to the back of the ambulance as § 87(2)(b) is being restrained. Once § 87(2)(b) is secured and placed into the ambulance, PO Peña enters the ambulance with a pink bag. The video ends at runtime 10:41. No additional video evidence of § 87(2)(b) removal to the hospital exists.

PO Coogan's statement [08 Board Review] is consistent with the BWC footage. As PO Coogan and the other officers attempted to escort § 87(2)(b) out of the LA Fitness, she again became uncooperative, allowing her body to go limp and dragging her feet as the officers carried her. PO Coogan stated that he did not place a forearm across § 87(2)(b) neck or back when attempting to restrain her at any point during this incident. § 87(2)(b) was removed to the hospital with a police escort, but PO Coogan could not recall which officers escorted § 87(2)(b) to the hospital. PO Coogan did not recall if any officer made comments about § 87(2)(b) religion or said that she was "speaking in tongues."

PO Encarnacion's statement [19 Board Review] is generally consistent with the BWC footage and PO Coogan's statement. She stated that PO Cruz escorted § 87(2)(b) in the ambulance while she, PO Coogan, and PO Reilly followed in their respective vehicles. PO Encarnacion did not hear any officer say that § 87(2)(b) was "speaking in tongues" or that this was "the work of the devil."

PO Reilly's statement [09 Board Review] is also consistent with the BWC video. PO Reilly could not recall which officers accompanied § 87(2)(b) to the hospital and noted that he did not do so. PO Reilly did not hear any officer make any comment about § 87(2)(b) religion or make any statement about § 87(2)(b) "speaking in tongues."

PO Pena's statement [20 Board Review] is consistent with the BWC footage and PO Encarnacion's statement. PO Pena did not recall if any officer said § 87(2)(b) was "speaking in tongues." PO Pena did not recall which officer escorted § 87(2)(b) to the hospital. PO Pena entered the ambulance to place § 87(2)(b) belongings inside, but she did not travel to the hospital.

As of November 5, 2024, [26 Board Review] PO Cruz has resigned from the NYPD. PO Cruz could not be interviewed as a result.

BWC video shows that as the officers attempted to restrain § 87(2)(b) after she slipped out of the handcuffs, she complained of being unable to breathe. § 87(2)(g)

§ 87(2)(g)
BWC footage shows that neither PO Coogan nor any other officer placed any pressure on § 87(2)(b) back or neck § 87(2)(g) It is therefore recommended that **Allegations H and I** be closed as **unfounded**.

§ 87(2)(b) stated that a Hispanic female officer with dark hair tied in a bun escorted her to the hospital. This officer allegedly told § 87(2)(b) that she was speaking in tongues and that this was "the work of the devil," as she prayed in Latin. The BWC footage does not show which officer ultimately escorted § 87(2)(b) to the hospital. PO Encarnacion stated that PO Cruz was the officer who ultimately escorted § 87(2)(b) to the hospital. PO Cruz generally fits the description of the subject officer provided by § 87(2)(b). Therefore, the investigation has determined by a preponderance of the evidence that PO Cruz is the subject of these allegations. PO Cruz's BWC video ends before § 87(2)(b) is placed into the ambulance. § 87(2)(g)

Therefore, it is recommended that **Allegations J, K, and L** be closed as **miscellaneous – subject resigned**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [22 Board Review].
- PO Coogan has been a member of service for four years and has been a subject in one other CCRB complaints and two allegations, neither of which were substantiated. § 87(2)(g)
- PO Encarnacion has been a member of service for 11 years and has been a subject in three other CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- SGT Bonilla has been a member of service for 12 years and has been a subject in two other CCRB complaints and two allegations, neither of which were substantiated. § 87(2)(g)
- § 87(2)(g) PO Reilly was not a subject in any other CCRB complaint.
- § 87(2)(g) PO Cruz was a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 11, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident [23 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	<u>David Wall</u>	<u>Investigator David Wall</u>	<u>03/03/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>03/04/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date